

Before the
FEDERAL MARITIME COMMISSION

Docket No. 23-02

BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

JOINT STATUS REPORT AND PROPOSED BRIEFING SCHEDULE

Complainant 20230930-DK-BUTTERFLY-1, Inc. (formerly known as Bed Bath & Beyond Inc.) (“Complainant”) and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (together, “Respondents”) (collectively, “the Parties”), by their respective undersigned counsel, and, pursuant to the Second Revised Scheduling Order issued by the Presiding Officer on November 17, 2023, hereby file this Joint Status Report describing the status of discovery in this proceeding and a proposed briefing schedule.

Prior to November 17, 2023, the Parties had already exchanged written discovery requests, including interrogatories, requests for admission, and requests for the production of documents and electronically stored information (“ESI”), as well as objections and responses to such requests. The Parties filed a Joint Status Report on December 15, 2023.

Since the last Joint Status Report, the Parties have continued to work diligently to complete the production of documents and report the following progress.

A. Production of Documents

The Parties both substantially completed document production prior to the deadline in the Second Revised Scheduling Order.

a. Complainant's Production of Documents

Since the last Joint Status Update on December 15, 2023, Complainant has made an additional two productions of documents to Respondent consisting of documents previously screened for privilege and documents contained within Complainant's Network Shared Drives. To date, Complainant has produced a total of 799,879 pages of documents.

Complainant's e-discovery vendor has recently identified approximately 300 additional documents that were inadvertently held back from production, and Complainant's counsel has reviewed those documents and will make a small supplemental production during the week of March 18, 2024, along with Complainant's privilege log.

b. Respondents' Production of Documents

Since the last Joint Status Report on December 15, 2023, Respondents have produced an additional five (5) "Confidential" and "Attorneys Eyes Only" sets of documents to counsel for Complainant on a weekly rolling basis. To date, Respondents have produced a total of 253,913 pages of documents.

Respondents anticipate serving their privilege log during the week of March 18, 2024.

B. Fact Witness Depositions

a. Complainant's Witnesses

Complainant is still reviewing Respondents' productions and evaluating witnesses for depositions, but anticipates coordinating with opposing counsel to issue Deposition Notices of current employees and subpoenas for foreign employees in advance of the time period allotted

under the Second Revised Scheduling Order to allow the parties to develop a proposed schedule for fact depositions based on mutually available times.

b. Respondents' Witnesses

As set forth in the November 10, 2023 Joint Status Update and Motion to Extend Briefing and Other Deadlines, Respondents have procured from the Presiding Officer subpoenas for the depositions of eight former employees of Complainant, and have issued notices of deposition for six additional employees. Complainant's counsel—who may be representing a number of the non-party former employees for whom notices of deposition were previously issued, and who may be representing some or all of the eight former employees for whom Respondents previously procured subpoenas—will need to be served with subpoenas, afforded opportunities to respond to the subpoenas, and schedule any depositions at mutually convenient times and locations (or via mutually agreed means).

C. Proposed Briefing Schedule

The Presiding Officer will recall that the discovery schedule per the November 17, 2023 Order is as follows:

April 15, 2024	Depositions of fact witnesses may begin unless parties agree to earlier date.
April 29, 2024	Complainant to identify expert witnesses, if any.
May 20, 2024	Report of Complainant's experts, if any, to be provided to Respondents.
June 4, 2024	Respondents to identify rebuttal expert witnesses, if any.
June 8, 2024	Last day to serve supplemental discovery requests.
June 18, 2024	Parties file joint status report identifying expert witnesses and summarizing the purpose of their testimony.
June 18, 2024	Respondents to provide Complainant with rebuttal experts' reports, if any.
July 1, 2024	Depositions of expert witnesses may begin.
July 10, 2024	Close of discovery.

As anticipated, the size and scope of discovery in this proceeding has been enormous. Over three (3) terabytes of data, or the equivalent of approximately 200-300 million pages of documents, have been exchanged by the Parties in response to first document production requests alone, as

well as the fact that the Parties anticipate over twenty (20) depositions of fact witnesses will be taken, and the possibility that each Party may require more than one expert witness. These figures will provide the Presiding Officer a sense of the size and scope of discovery already completed, and how far the Parties have yet to go before discovery can be completed.

As completion of discovery is unlikely to be achieved in the timeframes set out in the November 17, 2023 Order (namely, by July 10, 2024), to afford additional time for fact depositions and exchanging expert reports, the Parties propose the following briefing schedule:

October 11, 2024	Complainant's Opening Brief, Proposed Findings of Fact, and Appendix
November 11, 2024	Respondents' Reply Brief, Proposed Findings of Fact, Appendix, and Responses to Complainant's Proposed Findings of Fact.
November 26, 2024	Complainant's Response to Respondents' Brief and Proposed Findings of Fact.

D. Summary

The Parties have already exchanged hundreds of millions of pages of documents in this proceeding, with more likely to come. There are likely to be depositions of over 20 fact witnesses. Although the Parties have timely produced documents, reviewing those documents in preparation for fact witness depositions also takes time. To that end, the Parties submit this Joint Status Report and Proposed Briefing Schedule, noting the likelihood that they will require additional time for the completion of discovery and will seek such leave as soon as possible, and, in any event, in advance of the present deadlines set forth in the Second Revised Scheduling Order.

Dated: March 15, 2023

Respectfully submitted,

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